

Colo. Lic. Paraprofe. R. Profe. Cond. 1.12

Rule 1.12 - Former Judge, Arbitrator, Mediator or Other Third-Party Neutral

- (a) Except as stated in paragraph (d), an LLP shall not represent anyone in connection with a matter in which the LLP participated personally and substantially as a judge or other adjudicative officer or law clerk to such a person or as an arbitrator, mediator or other third-party neutral, unless all parties to the proceeding give informed consent, confirmed in writing.
- (b) An LLP shall not negotiate for employment with any person who is involved as a party or as a lawyer or LLP for a party in a matter in which the LLP is participating personally and substantially as a judge or other adjudicative officer or as an arbitrator, mediator or other third-party neutral. An LLP serving as a law clerk to a judge or other adjudicative officer may negotiate for employment with a party or lawyer involved in a matter in which the clerk is participating personally and substantially, but only after the LLP has notified the judge or other adjudicative officer.
- (c) If an LLP is disqualified by paragraph (a), no LLP or lawyer in a firm with which that LLP is associated may knowingly undertake or continue representation in the matter unless:
- (1) the disqualified LLP is timely screened from any participation in the matter and is apportioned no part of the fee therefrom;
 - (2) the personally disqualified LLP gives prompt written notice (which shall contain a general description of the personally disqualified LLP's prior participation in the matter and the screening procedures to be employed), to the parties and any appropriate tribunal, to enable the parties to ascertain compliance with the provisions of this Rule; and
 - (3) the personally disqualified LLP and the partners of the firm with which the personally disqualified LLP is now associated, reasonably believe that the steps taken to accomplish the screening of material information are likely to be effective in preventing material information from being disclosed to the firm and its client.
- (d) An arbitrator selected as a partisan of a party in a multimember arbitration panel is not prohibited from subsequently representing that party.

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Amended and Adopted by the Court, En Banc, April 13, 2023, effective 7/1/2023.
